



Auditing, Coding and Reviews for Investigators

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Today's Instructor: Eric Rubenstein



Seasoned retired federal law enforcement officer (25 years), specializing in white-collar crime investigations as a Special Agent for HHS-OIG. Wide-ranging experience involving federal healthcare programs, with an emphasis on crimes involving the Medicare and Medicaid programs by health care providers, including physicians, pharmacies and health care entities.

Demonstrated success in complex criminal investigative management and planning. Over \$500 million in restitution, forfeiture, damages, penalties and fines to government programs and over 150 convictions and civil settlements involving healthcare fraud matters. Broad trial experience, including three criminal trials in fourteen months (9 trials in all, including the first Civil False Claims Act trial in the District of New Jersey involving a violation of Stark). 20 years of presentation and training facilitation experience and a feature presenter/trainer at local, regional and national training academies, conferences (such as the National Healthcare Fraud Association and the American Association of Professional Coders) and subject matter case analysis. Extensive mentoring and training of new agents. A conduit of information on internal and external policies and procedures for criminal, civil and administrative investigative matters.

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Audits and Reviews

Policy Research

- Investigation vs. detective work
 - Detectives – know crime has been committed; need to determine who did it
 - Healthcare fraud investigation – know who did it; need to figure out if it is a crime
- Fundamental questions to ask:
 - What was the rule? and
 - How was it broken?
- Entire investigation based on understanding the rules
- Investigative plan based on determining if/how they were broken

Policy Research

- Every case brings different rules into play
 - CPT code policies
 - Modifier use
 - Coverage guidelines
 - “Incident to” rules
 - Place of service guidelines
 - Each line of business has different rules
 - » What do the contracts stipulate for coding guidance

Policy Research

- Impossible to learn them all at once
- Goal for any investigator – become a SME for the cases you are investigating
- Goal for today – provide some help in doing that
 - Learn the hierarchy of policies
 - Learn where to go to find out which ones apply

Policy Research

- State plans – each state submits a plan to DHHS
 - <https://www.Medicaid.Georgia.gov/programs/all-programs>
 - <https://www.in.gov/fssa/ompp/forms-documents-and-tools2/Medicaid-eligibility-policy-manual>
 - <https://directory.Arkansas.gov/agency/departments-of-human-services/division-of-medical-services/service/program-policy-and-support>

Policy Research

- Code of Federal Regulations (CFR)
 - <https://www.cms.gov/regulations-and-guidance/regulations-and-policies/medicare-fee-for-service-payment-regulations>

Policy Research

Medicare Fee-for-Service Payment Regulations

This page contains links to all Fee-for-Service payment regulations by provider type.

[Acute Inpatient IPS](#)

[Ambulance Fee Schedule](#)

[Ambulatory Surgical Center \(ASC\) Payment](#)

[Clinical Laboratory Fee Schedule](#)

[ESRD Payment](#)

[Federally Qualified Health Center PPS](#)

[Home Health PPS](#)

[Hospice](#)

[Hospital-Acquired Conditions \(Present on Admission Indicator\)](#)

[Hospital Outpatient PPS](#)

[Inpatient Psychiatric Facility PPS](#)

[Inpatient Rehabilitation Facility PPS](#)

[Long-Term Care Hospital PPS](#)

[Medicare FFS Physician Feedback Program/Value-Based Payment Modifier](#)

[Physician Fee Schedule](#)

[Shared Savings Program](#)

[Skilled Nursing Facility PPS](#)

Policy Research

- CMS national coverage determinations
 - National coverage determinations (NCDs) are made through an evidence-based process, with opportunities for public participation
 - » In the absence of a national coverage policy, an item or service may be covered at the discretion of the Medicare contractors based on a local coverage determination (LCD)
 - Arduous process – approval committees, Federal Register public comment process

Policy Research

- Internet-only manuals

- <https://www.cms.gov/regulations-and-guidance/guidance/manuals/internet-only-manuals-IOMs-items/cms014961>
- [Chapter 1 - Coverage Determinations, Part 1 Sections 10 - 80.12 \(PDF\)](#)
- [Chapter 1 - Coverage Determinations, Part 2 Sections 90 - 160.26 \(PDF\)](#)
- [Chapter 1 - Coverage Determinations, Part 3 Sections 170 - 190.34 \(PDF\)](#)
- [Chapter 1 - Coverage Determinations, Part 4 Sections 200 - 310.1 \(PDF\)](#)

- Local coverage determinations (LCD)
 - A determination by Medicare Administrative Contractor (MAC) under part A or part B, respecting whether a particular item or service is covered in a MAC jurisdiction
 - » Sub-regulatory
 - » FWA implications
 - » Multi-MAC jurisdictional implications
 - » Local Coverage Articles (LCA)

Policy Research

- Strongest policy to apply
 - Specific regulations for the specific code or service
 - Laws – too general, tend to use as back up when no specific policy applies
 - NCDs or state regs, plan policies are strong
 - LCDs – should be used, but must be careful
 - What about when no policy applies?
 - » New devices
 - » New ways to use an approved device

Policy Research

- Tools
 - Internet
 - CMS
 - » Internet-only manuals
 - » Regulations and policies site
 - SSA
 - State plans
 - MediRegs
 - EnCoderPro
 - NCCI edits

Policy Research

- Helpful hints
 - Find SMEs – use them
 - Look for precedents
 - Build a library
 - Individual or group
 - Keep track of appeals
 - Always refer to the policy

Case Example

- Provider of podiatric services opened two offices in two adjoining states; different MAC
- One MAC had a policy and one did not
- Is the behavior that was based on FWA in one MAC jurisdiction not an FWA issue in the other if there is no policy
- What about inconsistent policies
- Does FWA take precedence over the policy guidance from the plan, contract, regulations, NCD, LCD

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